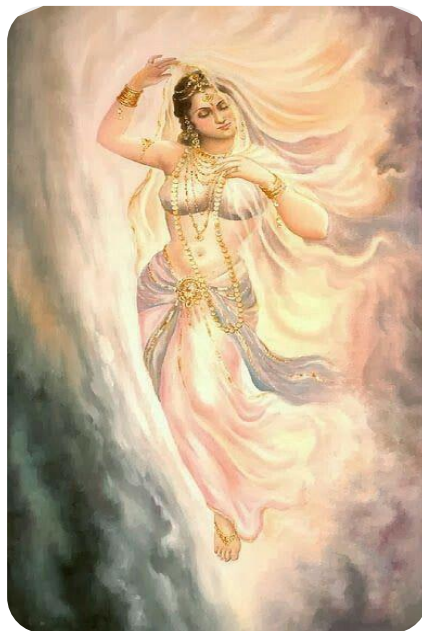
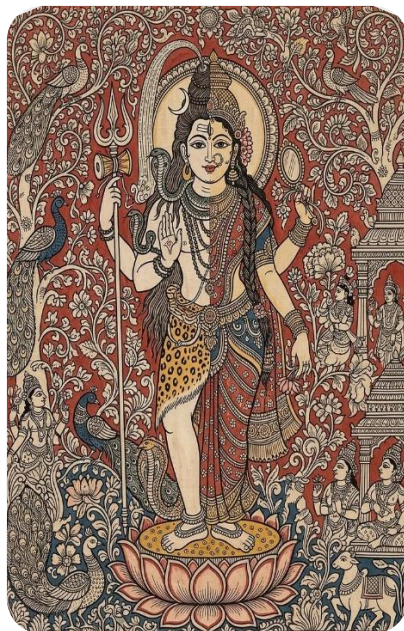

Buried in Colonialism, Lost in Legislation

- - Turns out "Indian values" is just Victorian morality wearing a bindi.

Majority of conservative Indians love blaming "**western media**" for the change in Indian culture. But the only thing we did truly inherit from our colonizers was the **prudishness in their personality, the censorship over our bodies and our history.**

Walk into any temple complex and the proof is right there, carved into stone. Khajuraho doesn't blush. Neither does the Konark Sun Temple. Take Ardhanarishvara: Shiva and Parvati fused into a single body, half male, half female, worshipped for over a thousand years, not as some oddity, but as a symbol of the cosmic balance. Or even Mohini, the form Vishnu takes to outwit the demons. She is not a footnote in the Puranas. Then, there's Shikhandi. Raised male. Pivotal to Bhishma's downfall on the battlefield. The Mahabharata doesn't edit that out or explain it away. It simply lets **a gender-nonconforming figure** shape the outcome of history's most famous war.



In parts of Tamil Nadu, the transgender community known as Aravanis trace their spiritual lineage to her (Mohini) brief marriage to Aravan, right before his sacrifice at Kurukshetra, a story still marked every year at a festival in Koovagam. The myths are theology; the Aravani and hijra communities are living social institutions with their own lineages, some of which draw on that theology and some of which don't. What they share is this: none of it was hidden, and none of it was branded "*abnormal*," "*modern*," or "*unnatural*." It was simply there, there as a part of nature's balance.



The hijra community's roots go back to the Mughal era, when its members held real power: guarding the zenana, advising at court, trusted enough to be recorded in Mughal chronicles. Call

it what it actually was. Not tolerance in the modern, watered-down mindset of India. It was *integration*.

Then the British arrived. With them came the Criminal Tribes Act of 1871, which classified hijras as a "tribe" and turned an entire community into targets: surveillance, warrantless arrest, forced registration. Section 377 of the Indian Penal Code, drafted in 1860 by Macaulay's committee and lifted straight from British sodomy law, criminalised "*carnal intercourse against the order of nature*." India carried that law for 158 years like a piece of inherited furniture nobody wanted but nobody threw out either, until 2018, when the Supreme Court finally struck it down in Navtej Singh Johar. For over a century and a half, we lived with someone else's anxieties and called them our own traditions. That's not heritage. *That's fear wearing the costume of culture.*

The 2014 NALSA judgment was a genuine step forward. It recognised transgender persons as a third gender and grounded that recognition in Articles 14, 15, 19, and 21 of the Constitution. Equality, Inclusivity, Self Identification & Right to Life, not handed down as gifts from the state, but affirmed as rights the state was always obligated to protect. On paper, it's still one of the more progressive rulings anywhere in the world. Then, came the Transgender Persons (Protection of Rights) Act of 2026: it made transgender people apply to the government for a certificate proving who they already were, built directly against the warning NALSA itself had issued. Self-identification in theory. Self-justification in practice. Before this committee drafts another resolution about "intent," it might want to sit with that contradiction for a minute.

Same-sex marriage hasn't fared any better. In Supriyo v. Union of India, 2023, the Supreme Court agreed unanimously that queer couples deserve dignity and freedom from discrimination. Then, in a 3:2 split, it refused to extend the Special Marriage Act to them. The matter got handed to Parliament, which has shown no particular hurry to pick it up because why hurry up a decision on a life-changing act that offers them no profit as it is not created out of capitalistic intent, but for the good of humanity. Why do something nice for a change?

So, here's the real question for this committee; Does India want to legislate gender neutrality because the rest of the world is catching up to an idea? Or because India is finally catching up to itself?

The mythology was never the problem. The clueless bureaucracy is. Wiping away years of history just to fit the ideal version of what "India" is and was supposed to be is the problem.

A country that once let a warrior born a woman decide the fate of an empire or a god who is the 50-50 balance of a man & woman shouldn't need committee sessions to decide whether her modern equivalent deserves a marriage certificate or not.

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